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Case Number: 22STCV36611 Hearing Date: July 29, 2026 Dept: 732

John Doe v. Roe Youth Organization 1, et al.

Wednesday, July 29, 2026

CASE NUMBER: 22STCV36611

OPPOSED

Plaintiff John Doe's Motion to Compel Deposition Answers of Defendant Roe Mentor

Facts: This is an action based on liability for child sexual abuse. The Third Amended Complaint (TAC) alleges as follows. Plaintiff John Doe was a minor of 13 years old in 1991 when he was sexually abused by Defendant Roe Mentor. (TAC ¶ 23.) Roe Mentor was an agent, advisor, counselor, and/or volunteer for Defendant Roe Youth Organization 2, which was supervised by Roe Youth Organization 1. (TAC ¶ 23.) Defendants maintained Roe Mentor in his position despite having actual or constructive knowledge of Roe Mentor's dangerous propensities. (TAC ¶ 28.)

Procedural History: Plaintiff filed the original Complaint on November 21, 2022. Plaintiff filed a First Amended Complaint on December 14, 2022, and a Second Amended Complaint on October 6, 2023. Plaintiff filed the TAC on January 4, 2024, alleging five causes of action:

Negligence

Negligent Supervision/Training/Hiring/Retention

Sexual Battery

Assault

Intentional Infliction of Emotional Distress

Plaintiff filed the present motion to compel deposition answers on January 23, 2026.

Defendant filed an opposition on July 16, 2026.

Plaintiff filed a reply on July 22, 2026.

Analysis

MOTION TO COMPEL DEPOSITION ANSWERS

“If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” (Code Civ. Proc. § 2025.480, subd. (a).)

Plaintiff John Doe (“Plaintiff”) moves to compel deposition answers and responses to requests for production contained in a deposition notice from Defendant Roe Mentor, (“Defendant”), based on Defendant’s refusal to answer questions or produce documents based on the invocation of his privilege against self-incrimination. (Motion at pp. 5–8.)

The deposition at issue took place on December 9, 2025, following service of objections by Defendant to requests for production based on the privilege against self-incrimination, and following notice from his counsel that he was not going to answer any “substantive questions” based on the same privilege. (Gamble Decl. ¶¶ 6–9.) At the deposition, Defendant answered questions concerning his name, birth date, address, marital status, and whether he had ever lived in California. (Gamble Decl. Exh. E at pp. 11–12.) When questioned concerning when he had lived in California, Defendant’s counsel suggested that he invoke the privilege, which he did. (Gamble Decl. Exh. E at p. 13.) Plaintiff’s counsel stated that any criminal statute of limitations had lapsed and thus Defendant could not invoke the privilege. (Id. at p. 13.) Defendant’s counsel disagreed, and stated that Plaintiff’s counsel could continue to ask questions, but he would instruct Defendant not to answer “anything that appears to be substantive.” (Id. at p. 14.)

In the present motion, Plaintiff argues that Defendant cannot invoke the privilege against self-incrimination because the criminal statute of limitations has run on the alleged sexual abuse that is the subject of the present action. Per Plaintiff, under Penal Code § 801.1, for qualifying sex crimes against a minor that are alleged to have been committed after January 1, 2015, or for which the limitations period had not expired as of January 1, 2015, prosecution may be initiated “any time prior to the victim's 40th birthday.” (Penal Code § 801.1, subd. (a).) Plaintiff argues that he turned 40 in November 2017, meaning that the potential for any criminal prosecution expired on that date. (Motion at p. 6.)

The privilege against self-incrimination may be asserted in civil proceedings. (See *Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1042.)

“The privilege afforded not only extends to answers that would in themselves support a conviction under a federal criminal statute but likewise embraces those which would furnish a link in the chain of evidence needed to prosecute the claimant for a federal crime. [Citation.] But this protection must be confined to instances where the witness has reasonable cause to apprehend danger from a direct answer. [Citation.] The witness is not exonerated from answering merely because he declares that in so doing he would incriminate himself—his say-so does not of itself establish the hazard of incrimination. It is for the court to say whether his silence is justified, [citation], and to require him to answer if ‘it clearly appears to the court that he is mistaken.’ [Citation.] However, if the witness, upon interposing his claim, were required to prove the hazard in the sense

in which a claim is usually required to be established in court, he would be compelled to surrender the very protection which the privilege is designed to guarantee. To sustain the privilege, it need only be evident from the implications of the question, in the setting in which it is asked, that a responsive answer to the question or an explanation of why it cannot be answered might be dangerous because injurious disclosure could result. The trial judge in appraising the claim 'must be governed as much by his personal perception of the peculiarities of the case as by the facts actually in evidence.'

(Id. at p. 1043, quoting *Hoffman v. United States* (1951) 341 U.S. 479, 486–487.)

A witness "need not demonstrate a real "likelihood of prosecution" in order to invoke the privilege against self-incrimination; rather, when a witness can show any possibility of prosecution which is more than fanciful, he has demonstrated a reasonable fear of prosecution sufficient to meet constitutional muster." (Warford, *supra*, 160 Cal.App.3d at p. 1044.) The witness may not assert a blanket refusal to testify, and "[t]he privilege must be specifically claimed on a particular question and the matter submitted to the court for its determination as to the validity of the claim." (Id. at p. 1045.) "The reason for the requirement that the person claiming the privilege must object with specificity to the information sought from him is that only where this is done is the trial court enabled to make the particularized inquiry required of it. "A party is not entitled to decide for himself whether he is protected by the fifth amendment privilege. Rather, this question is for the court to decide after conducting 'a particularized inquiry, deciding, in connection with each specific area that the questioning party seeks to explore, whether or not the privilege is well-founded.'" (Ibid.)

Defendant in opposition argues that the statute of limitations has not necessarily run as to the alleged abuse that is the subject of the present lawsuit. Specifically, Defendant notes Penal Code § 803, subd. (f), which states that "a criminal complaint may be filed within one year of the date of a report to a California law enforcement agency by a person of any age alleging that the person, while under 18 years of age, was the victim of a crime" to which the limitations period of Penal Code § 801.1, subd. (a) applies, permitting prosecution to take place, provided that each of the following conditions is met:

(A) The limitation period specified in Section 800, 801, or 801.1, whichever is later, has expired.

(B) The crime involved substantial sexual conduct, as described in subdivision (b) of Section 1203.066, excluding masturbation that is not mutual.

(C) There is independent evidence that corroborates the victim's allegation. If the victim was 21 years of age or older at the time of the report, the independent evidence shall clearly and convincingly corroborate the victim's allegation.

(Penal Code § 803, subd. (f).) Defendant thus argues that, notwithstanding the expiration of the limitations period of Penal Code § 801.1 with Plaintiff's 40th birthday, he may still be subject to prosecution within one year of any qualifying report to a California law enforcement agency, supported by clear and convincing independent corroborating evidence. (Opposition at pp. 3–4.)

Defendant's argument is persuasive to the effect that he cannot be prevented from invoking the privilege on the grounds that he does not reasonably fear prosecution. Plaintiff argues that the conduct alleged in the Third Amended Complaint ("TAC") constitute felony offenses subject to the limitations period of Penal Code § 801.1, and in reply does not dispute that the matters alleged constitute substantial sexual conduct under Penal Code § 1203.066. Thus a qualifying report supported by sufficient independent corroborating evidence would be effective to permit a criminal prosecution, despite the fact that the limitations period of Penal Code § 801.1 has already run.

Plaintiff in reply argues that Defendant cannot invoke Penal Code § 803 because he cannot say that any such report has been filed, or that any such evidence exists. (Reply at pp. 4–5.) Plaintiff analogizes the present case to *Blackburn v. Superior Court* (1993) 21 Cal.App.4th 414, 426, another child molestation case, in which the defendant sought to invoke the privilege against self-incrimination after the statute of limitations for criminal prosecution had run. The defendant there argued that "even though the prescribed period of limitations ha[d] expired, he still may be subject to criminal prosecution" because "the six-year statute of limitations may have been tolled." (*Blackburn*, *supra*, 21 Cal.App.4th at p. 426.) The appellate court

rejected the argument based on tolling, as it was supported by no other evidence save “counsel’s belief” that the limitations period might have been tolled. (Id. at p. 429.)

Blackburn is distinguishable. Defendant’s argument related to the statute of limitations rests not on an unspecified tolling doctrine but on the provisions of Penal Code § 803, subd. (f). Per those provisions, the limitations period may be reopened on the crimes alleged in the complaint here if report is made supported by sufficient corroborating evidence. Although Plaintiff argues that no such report has been made, the possibility that such report may be made is “more than fanciful,” particularly given Plaintiff’s allegations in the present action. (Warford, *supra*, 160 Cal.App.3d at p. 1044.) So too is the possibility that any such report would be supported by the requisite evidence. Indeed, the very deposition testimony that Plaintiff seeks here may provide the corroborating evidence that is used to satisfy the requirements of Penal Code § 803. Thus, even if a prosecution under that statute is unlikely, it is possible. “The test is whether the statement might tend to incriminate, not whether it might tend to lead to an actual prosecution or, stated slightly differently, whether the statement could, not would, be used against the witness.” (People v. Seijas (2005) 36 Cal.4th 291, 305, *italics in original*.) The privilege against self-incrimination thus cannot be discarded here on the argument that the limitations period has run.

Plaintiff in reply argues that even if the privilege may be invoked, it may not be invoked in a blanket fashion against all questioning. (Reply at pp. 6–7.) It is true that a witness “may not assert a blanket refusal to testify, and “[t]he privilege must be specifically claimed on a particular question and the matter submitted to the court for its determination as to the validity of the claim.” (Warford, *supra*, 160 Cal.App.3d at p. 1045.) But the circumstances here do not present a blanket refusal to testify. Defendant has agreed to sit for his deposition, and has answered questions concerning his identity. His counsel has stated that objections shall be raised to “substantive” questions as they are asked, but resolution of whether these objections are proper or improper awaits the asking of the questions.

The deposition transcript presents only one question asked of Defendant against which he invoked the privilege before deposition was suspended: “Can you tell me when you lived in California?” (Gamble Decl. Exh. E at p. 13.) Defendant argues that questions concerning when he lived in California seek incriminating information, because Plaintiff alleges he was abused by Defendant while he lived with him in 1991 and 1992. (Opposition at pp. 5–6; Statman Decl. ¶ 3.) It reasonably appears that the question could furnish “a link in the chain of evidence needed to prosecute the claimant for a ... crime.” (Warford, *supra*, 160 Cal.App.3d at p. 1043.)

Likewise, Defendant’s objections to the requests for production of documents are also largely well-taken. These requests ask Defendant to produce documents concerning notice that he had committed or been accused of sexual abuse, communications relating to Plaintiff or the organizations he is alleged to have been affiliated with in the course of the alleged abuse of Plaintiff, (Gamble Decl. Exh. A.) Defendant’s possession of the records sought could once again form a link in the chain of evidence used to prosecute him.

The sole exceptions appear to be Requests No. 9–11, which ask only for the production of documents identified in responses to interrogatories and requests for admissions. (Ibid.) As to these, Defendant makes no showing of any tendency to incriminate, and the court lacks reference to the responses to interrogatories or admissions at issue, and thus any basis to validate the exercise of the privilege as to these requests.

Accordingly, the motion to compel deposition answers is GRANTED as to Requests for Production No. 9–11. As to the deposition questions themselves, the motion is DENIED, as Plaintiff has not identified any question that Defendant has wrongly refused to answer. No sanctions are awarded.

Superior Court of California

County of Los Angeles

Department 732

JOHN DOE

Plaintiffs

v.

ROE YOUTH ORGANIZATION 1., et al.,

Defendants.

Case No.: 23STCV21849

Hearing Date: July 29, 2026

[TENTATIVE] RULING RE:

Plaintiff John Doe's Motion to Compel Deposition Answers of Defendant Roe Mentor

Plaintiff John Doe's Motion to Compel Deposition Answers of Defendant Roe Mentor is GRANTED as to Requests for Production No. 9–11. The motion is otherwise DENIED. No sanctions are awarded.

Defendant to give notice.

Dated: July 29, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court v